

Counsel briefing packet — Filosign legal pages

Not legal advice. Use this memo to brief qualified counsel before paid production launch.

Marketing site: <https://filosign.xyz/>

Web application: <https://app.filosign.xyz/>

Operator posture

- **No registered entity yet.** Service operated by **Kartikay Tiwari**, individual, **Jaunpur, India**, doing business as **Filosign**.
- **Subscriptions: Dodo Payments, Inc.** as **Merchant of Record** (legal seller on subscription charges), not payment-gateway-only.
- **Product:** Encrypted document signing; optional non-custodial USDC settlement on Base (v1); no fund custody.

Documents to review (public URLs)

Document	Link
Terms of Service	https://filosign.xyz/terms/
Privacy Policy	https://filosign.xyz/privacy/
Acceptable Use	https://filosign.xyz/acceptable-use/
Subprocessors	https://filosign.xyz/subprocessors/
E-signature validity (explainer)	https://filosign.xyz/legal/e-signature-validity/
Non-custodial settlement (explainer)	https://filosign.xyz/legal/non-custodial-settlement/
Security overview	https://filosign.xyz/security/
Pricing (subscription context)	https://filosign.xyz/pricing/

Contact (as stated on-site): support@filosign.xyz · privacy@filosign.xyz · security@filosign.xyz

Priority questions for counsel

1. **Sole proprietor vs incorporation** before paid GA; liability and Dodo merchant KYC.
2. **India:** DPDP significant fiduciary threshold, grievance officer duties, notice content, Jaunpur venue/arbitration.
3. **GDPR/UK:** Whether EU/UK representative required; transfer mechanisms (SCCs/IDTA); completeness of rights and legal bases.
4. **Dodo MoR split:** Confirm dual-controller disclosure (Filosign app data vs Dodo checkout/payment data) and customer-facing refund/chargeback allocation.
5. **ToS enforceability:** Liability cap, indemnity, B2C users in EU/UK, arbitration clause.
6. **E-sign claims:** Excluded-document lists and marketing alignment (no ESIGN/eIDAS "satisfaction" claims on [blog](#) and product copy).

7. **Settlement / MSB:** Non-custodial USDC relay posture and sanctions/export controls language.

Copy themes already on the site (still need counsel sign-off)

- Merchant of Record section in [Privacy Policy](#); MoR-only billing language in [Terms](#).
- Footer links to [Acceptable Use](#) and [Subprocessors](#).
- [Subprocessors](#) lists **Resend, Hetzner (app + Postgres), Cloudflare R2**, thirdweb, PostHog, Dodo MoR.
- [Security overview](#) in present tense; unaudited smart-contract notice for settlement.
- Shared excluded-document list across Terms, e-sign explainer, and Acceptable Use.

In-product behavior to verify against policies

- **E-sign consent** — shown on the document signing screen in the web app (app.filosign.xyz).
- **Analytics consent** — non-essential analytics gated behind consent in the web app; should match [Privacy Policy](#) §10.
- **Subscription checkout** — processed by Dodo as MoR; confirm checkout/disclosure flow matches [Terms §8](#) and [Dodo's privacy policy](#).

Dodo references

- MoR overview: <https://docs.dodopayments.com/features/mor-vs-pg>
- Dodo privacy policy: <https://dodopayments.com/legal/privacy-policy>
- Dodo DPA: <https://dodopayments.com/legal/data-processing-agreement>